Eniarku Compiled Laws

Government of Eniarku

Table of contents

Preface 4

Title 1 — General Provisions 5

Construction and Codification Act 6
Sec. 1.001 — Short title. . . . 6
Sec. 1.002 — Resolutions; require for legislation providing for acts of state; process. 6
Sec. 1.003 — Resolutions; form and manner; unique identifier; title; enacting clause; enabling clause. . . . 6
Sec. 1.004 — Resolutions; form and manner; require reprinting and marking of changes. 7
Sec. 1.005 — Resolutions; adoption by Council of State; enrolling, printing, and presentation; royal assent. . . . 7
Sec. 1.006 — Eniarku Compiled Laws; require codification of Constitution and laws; "law" defined; order of codification; titles. . . . 7
Sec. 1.001 — Short title. . . . 8
Sec. 1.005 — Resolutions; adoption by Council of State; enrolling, printing, and presentation; royal assent. . . . 8
Sec. 1.007 — Eniarku Compiled Laws; repealed provisions; require printing with historical information. . . . 8

Great Seal Act 9
Sec. 1.101 — Short title. . . . 9
Sec. 1.102 — Great seal; use as official seal. . . . 9
Sec. 1.103 — Great seal; description. . . . 9
Sec. 1.104 — Great seal; impression on certain documents. . . . 9
Sec. 1.105 — Lord High Chancellor; establish; appointment and term of office. . . . 10
Sec. 1.106 — Great seal; prohibit use for unofficial purposes. . . . 10
Sec. 1.107 — Great seal; affixing to instruments by Lord High Chancellor. . . . 10
Sec. 1.108 – Great seal; violations as misdemeanor. . . . 10

Title 5 — The Council of State 11

Internal Procedures Act 12
Sec. 5.001 — Short title. . . . 12

Sec. 5.002 — Regular sessions; member attendance. 12
Sec. 5.003 — Quorum; require to conduct business. 12
Sec. 5.004 — Order of business. 12
Sec. 5.005 — Crown-in-Council; equal vote. 13
Sec. 5.006 — Internal rules; require two-thirds vote to adopt, amend, or repeal. . . . 13
Sec. 5.007 — Absence of rule governing certain conduct; applicability of generally acceptable parliamentary procedure; ruling of chair. 13
Sec. 5.008 — Resolutions; effective date. 13

Preface

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Title 1 — General Provisions

Construction and Codification Act

AN ACT OF STATE to provide for the form and manner of the construction and codification of the laws.

Be It Enacted By The Crown-In-Council:

Sec. 1.001 — Short title.

This act may be cited as the "Construction and Codification Act".

Sec. 1.002 — Resolutions; require for legislation providing for acts of state; process.

All legislation providing for an act of state must be by resolution of substantially similar form to this act that is introduced by a member of the Council of State by motion during a session thereof, debated by a quorum of members, and adopted by majority vote or unanimous consent of those members, subject to applicable law. A resolution that is rejected by a quorum of members of the Council of State is null and void.

Sec. 1.003 — Resolutions; form and manner; unique identifier; title; enacting clause; enabling clause.

A resolution furnished under this act must contain, but is not limited to, the following: (a) A unique identifier. (b) A title expressing the object of and the changes proposed by the resolution. (c) An enacting clause of the form "BE IT ENACTED BY THE CROWN-IN-COUNCIL:". (d) An enabling clause of the form "BY AND UNDER THE GREAT SEAL OF THE REALM, SO ENACTED THIS [DD] DAY OF [MM], [YYYY].", such that the bracketed text is replaced, respectively, with the long-form day, month, and year of the date upon which the Crown-in-Council granted assent to the resolution.

Sec. 1.004 — Resolutions; form and manner; require reprinting and marking of changes.

A resolution furnished under this act for the purpose of amending any section or sections of a law must reprint the object section or sections at length, in which insertions must be marked by boldface text and deletions must be marked by strikethrough text.

Sec. 1.005 — Resolutions; adoption by Council of State; enrolling, printing, and presentation; royal assent.

A resolution furnished under this act and adopted under this act must be enrolled, printed, and presented to the Crown-in-Council not more than 24 hours after adoption, which shall receive and review the resolution and grant assent, at which time the resolution shall be considered enacted, or refuse assent, at which time the resolution shall be considered null and void.

Sec. 1.006 — Eniarku Compiled Laws; require codification of Constitution and laws; "law" defined; order of codification; titles.

(1) The Constitution and all laws shall be recorded in the Eniarku Compiled Laws. As used in this act, "law" means any of the following:

   (a) An act of state.
   (b) Orders-in-council.
   (c) Letters patent.
   (d) A sovereign proclamation.

(2) The Constitution shall be codified in the Eniarku Compiled Laws before Title 1.

(3) Acts of state shall be codified in the Eniarku Compiled Laws such that the first digit of a section identifier corresponds to one of the following titles:

   (a) Title 1 – General Provisions
   (b) Title 2 – The Public Welfare and Security
   (c) Title 3 – The Crown and Royal House
   (d) Title 4 – National Honours and Nobility
   (e) Title 5 – The Council of State
   (f) Title 6 – National Symbols
   (g) Title 7 – The Realm
   (h) Title 8 – Commerce and Trade
   (i) Title 9 – Domestic Affairs

(j) Title 10 – Foreign Affairs

(4) Orders-in-council, letters patent, and sovereign proclamations shall be codified in the Eniarku Compiled Laws under the title that most closely corresponds to the subject matter of the instrument. Such instruments shall be codified in the Eniarku Compiled Laws using the unique identifier assigned to them by the issuing entity of the state.

Sec. 1.001 — Short title.

This act may be cited as the "Construction and Codification Act", ***AND HERE'S THE NEW EDITS!!!!!!!!!!***

Sec. 1.005 — Resolutions; adoption by Council of State; enrolling, printing, and presentation; royal assent.

[Repealed by 26CR30]

Sec. 1.007 — Eniarku Compiled Laws; repealed provisions; require printing with historical information.

Any provisions of the Eniarku Compiled Laws that is repealed by a resolution furnished under this act must be printed in the Eniarku Compiled Laws with sufficient historical information such that a reasonable person would be able to identify the previous versions of those provisions.

Great Seal Act

AN ACT OF STATE to provide for the Great Seal of the Realm; to provide for the uses and purposes thereof; and to establish the office, powers, and duties of the Lord High Chancellor.

Be It Enacted By The Crown-In-Council:

Sec. 1.101 — Short title.

This act may be cited as the "Great Seal Act.

Sec. 1.102 — Great seal; use as official seal.

The Great Seal of the Realm shall be the official seal of The Sovereign and the state.

Sec. 1.103 — Great seal; description.

The Great Seal of the Realm shall be comprised of a lion, around which shall appear the words "MAGNUM SIGILLUM MAGNI DUCATUS", around which shall appear the words "ALEXANDER PRIMUS PER GRATIAM ET VOLUNTATEM POPULI MAGNUS DUX REGNI DEFENSOR CONSTITUTIONIS ET CETERA".

Sec. 1.104 — Great seal; impression on certain documents.

An electronic or material impression of the Great Seal of the Realm shall be placed on or affixed to those instruments which require the assent of The Sovereign to enter into effect. Any such instrument which does not bear the Great Seal of the Realm shall be considered null.

Sec. 1.105 — Lord High Chancellor; establish; appointment and term of office.

(1) The office of the Lord High Chancellor is established as an entity of the state.

(2) The Lord High Chancellor shall be appointed to his office and to the Council of State by, and serve at the pleasure of, The Sovereign.

Sec. 1.106 — Great seal; prohibit use for unofficial purposes.

No person or entity of the state, with the exception of the Lord High Chancellor or any other such person or entity of the state as provided by law, shall make or prepare any instrument bearing a facsimile or reproduction of the Great Seal of the Realm for any purposes unconnected with official functions of the state.

Sec. 1.107 — Great seal; affixing to instruments by Lord High Chancellor.

(1) Upon receipt of an adopted resolution of the Council of State providing for an act of state and a warrant issued by The Sovereign granting assent to that resolution, the Lord High Chancellor shall place on or affix to that resolution the Great Seal of the Realm.

(2) Upon receipt of orders-in-council, letters patent, or a sovereign proclamation issued by The Sovereign, the Lord High Chancellor shall place on or affix to that instrument the Great Seal of the Realm.

Sec. 1.108 – Great seal; violations as misdemeanor.

A person who violates any provision of this act shall be guilty of a misdemeanor.

Title 5 — The Council of State

Internal Procedures Act

AN ACT OF STATE to provide for certain internal procedures of the Council of State.

Be It Enacted By The Crown-In-Council:

Sec. 5.001 — Short title.

This act may be cited as the "Internal Procedures Act.

Sec. 5.002 — Regular sessions; member attendance.

The Council of State shall conduct all public business during regular sessions. Members shall attend sessions in person or by means of two-way video and audio technology.

Sec. 5.003 — Quorum; require to conduct business.

The Council of State shall not conduct any public business unless a quorum of 51% or more of its members are present.

Sec. 5.004 — Order of business.

The Council of State shall conduct public business in the following sequence: (a) Introductions of resolutions. (b) Debates on resolutions, including, but not limited to, amendments and procedural motions. (c) Votes on resolutions under consideration. (d) Motions and procedural matters relating to the operations of the Council of State, including, but not limited to, the rules of the Council of State and scheduling matters. (e) Any other public business.

Sec. 5.005 — Crown-in-Council; equal vote.

A vote submitted by the Crown-in-Council during a session of the Council of State shall be considered equally to a vote submitted by any other member thereof.

Sec. 5.006 — Internal rules; require two-thirds vote to adopt, amend, or repeal.

The Council of State may, by a two-thirds vote of all members, adopt, amend, or repeal, in part or in entirety, certain rules governing the procedures and operations of the Council of State, including, but not limited to, those relating to the form and manner of debate and voting during a session thereof.

Sec. 5.007 — Absence of rule governing certain conduct; applicability of generally acceptable parliamentary procedure; ruling of chair.

In the absence of a rule or procedure governing certain activities of the Council of State, the generally acceptable principles of parliamentary procedure shall apply, subject to a ruling of the member presently chairing the session to that effect.

Sec. 5.008 — Resolutions; effective date.

A resolution adopted by the Council of State and granted assent by The Sovereign that does not specify the effective date of the provisions thereof shall become effective at 12:00 AM on the day immediately following the date on which assent was granted.